

## I. Request

1. The President of the Commission for Economy, Public Works, Planning, and Housing requested, on December 11, 2024, the National Data Protection Commission (CNPd) to issue an opinion on Bill No. 32/XVI/1st, which ensures the implementation, in the internal legal order, of Regulation (EU) 2022/2065 of the European Parliament and of the Council of October 19, 2022, concerning a single market for digital services and amending Directive 2000/31/EC (Digital Services Regulation).
2. The CNPD issues this opinion within the scope of its powers and competencies, as an independent administrative authority with enforcement powers for the control of personal data processing, conferred by paragraph c) of number 1 of article 57, paragraph b) of number 3 of article 58, and number 4 of article 36, all of Regulation (EU) 2016/679 of April 27, 2016, General Data Protection Regulation, in conjunction with the provisions of article 3, number 2 of article 4, and paragraph a) of number 1 of article 6, all of Law No. 58/2019 of August 8, which implements the GDPR in the internal legal order.

## II. Analysis

3. Regulation (EU) 2022/2065 of the European Parliament and of the Council, of October 19, 2022, concerning a single market for digital services, which amends Directive 2000/31/EC (hereinafter simply referred to as the internal market for intermediary services), establishes harmonized rules for a secure, predictable, and reliable online environment that facilitates innovation and in which the fundamental rights enshrined in the Charter of Fundamental Rights of the European Union are effectively protected.
4. The Digital Services Regulation establishes harmonized rules in a set of matters, particularly regarding how providers of these services should address illegal content transmitted or stored on their online interfaces.
5. This Regulation also establishes a set of rules applicable to very large online platform providers and very large online search engines, aiming, in particular, to establish obligations related to the prevention and mitigation of a set of systemic risks that are particularly relevant on platforms and interfaces that reach a very high number of recipients.
6. In compliance with number 3 of article 49 of the Digital Services Regulation, Decree-Law No. 20-B/2024, of February 16, designated the competent Authorities and the Coordinator of Digital Services in Portugal: the National Communications Authority (ANACOM) as the competent Authority and Coordinator of Digital Services in Portugal, with the Regulatory Authority for Social Communication (ERC) and the General Inspectorate of Cultural Activities also established as competent authorities (cf. article 2 of the aforementioned Decree-Law No. 20-B/2024).
7. Number 1 of article 5 of this Bill provides for the competent Authorities in Portugal, namely the National Communications Authority (ANACOM), the Regulatory Authority for Social Communication (ERC), and the National Data Protection Commission (CNPd), for the supervision of compliance with the provisions of number 3 of article 26 and number 2 of article 28 of the Digital Services Regulation.
8. In number 2 of the same article, ANACOM is designated as the Coordinator of Digital Services in Portugal, being responsible for the supervision and execution of the Digital Services Regulation in all matters regulated by it, except for those in which such competencies fall to the other competent Authorities.
9. Number 6 of article 5 of the Bill grants the CNPD the competence to supervise compliance with the provisions of number 3 of article 26 of the Digital Services Regulation (definition of profiles using special categories of personal data referred to in number 1 of article 9 of the GDPR), and the provisions of number 2 of article 28 of the Digital Services Regulation (prohibition of displaying advertisements using the personal data of the service recipient if they have knowledge, with reasonable certainty, that the service recipient is a minor).
10. This Bill ensures the implementation, in the internal legal order, of the Digital Services Regulation, firstly, by updating the competent Authorities for its supervision and execution in the national context, specifying their powers and the cooperation model among them and with other judicial and administrative authorities, determining the applicable rules for supervision and inspection, and establishing the sanctioning regime in case of non-compliance with the obligations arising from that

Regulation.

11. The CNPD, as the competent Authority, participated in the Working Group created through Dispatch No. 1747/2024, of February 15, and, as such, presented its contributions for the preparation of this Bill regarding personal data protection matters.

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12. However, this Proposal for a Law raises the following questions:

13. The impact on the protection of personal data of this Proposal for a Law primarily concerns the data requested in complaints when made by individuals, pursuant to Article 11 of the Proposal for a Law, noting that the same article, in its paragraph 6, refers to the definition of the terms and conditions applicable to the submission of complaints to a Regulation to be approved subsequently.

14. It is suggested that a deadline be established for the preparation of the aforementioned Regulation.

15. Regarding the record of recidivism, provided for in Article 30 of the Proposal for a Law, the information that must be included in this record, who has access to it, and the forms of access are omitted. In fact, it is integrated and processed in computer applications, pursuant to the terms and conditions.

### III. Conclusion

16. In accordance with the terms and the grounds set forth above, the CNPD issues this opinion, by which it recommends:

a) The definition of a deadline for the preparation of the Regulation referred to in paragraph 6 of Article 11 of this Proposal for a Law;

b) The specification of which personal data is processed in the record of recidivism, provided for in Article 30 of the Proposal for a Law, who has access to it, and what the forms of access are, as this provision is integrated and processed in computer applications, pursuant to the terms and conditions.

Approved at the meeting of January 14, 2025

Paula Meira Lourenço (President)